

Part V. Finance and services

No. 12

## **Education Support**

Code

Cite this instrument as No. 12, Education Support.

29 September 2026

### **Summary**

One budget line, a written decision in 30 days, the same rate for every member in the same row, and one appeal.

An application should not turn on which councillor is asked, or on whether the member lives on reserve.

## **Part 1. Purpose**

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1.1 This instrument sets one education budget and a written decision for every applicant. Support does not depend on which councillor is asked.

## Part 2. The amount

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2.1 Council must put one education amount in the annual budget. The finance officer must post the schedule of rates at least 14 days before the budget vote. The schedule in this draft, which electors may change before adoption, is:

| Item                                                          | Amount                                     | Rule                                                     |
|---------------------------------------------------------------|--------------------------------------------|----------------------------------------------------------|
| Tuition and mandatory fees                                    | The invoice, if the budget line can pay it | Same rule for every member in that program               |
| Books and required materials                                  | Up to \$800 in a school year               | Receipts filed within 30 days, or the next payment waits |
| Living support, school more than 80 km from the member's home | The monthly rate posted in the budget      | One rate for every member in this row                    |
| Living support, school 80 km or closer                        | The monthly rate posted in the budget      | One rate for every member in this row                    |

2.2 Residence on or off reserve does not change the row. A decision that uses residence as the reason, where the schedule does not, is void. The education officer must issue a corrected decision within 14 days.

### **Part 3. Decisions**

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3.1 An application is filed with the education officer. The officer must acknowledge it within 7 days and must decide in writing within 30 days of a complete application. The decision must say the amount, the months, and the section relied on. A refusal must give the reason and the appeal deadline.

3.2 If there is no decision on day 30, the application is deemed refused on day 31. The applicant may appeal on day 32.

3.3 The applicant may appeal to the appeal body within 14 days. The appeal body must decide within 21 days. Its decision replaces the officer's decision.

3.4 An application by the chief, a councillor, an employee in the education office, or their immediate family is decided by the appeal body, not by council or the education officer. The body must decide within 30 days. A decision made by council on that file is void.

3.5 The education officer must post, every quarter within 30 days of quarter end, the number of applications, the number approved, the number refused, and the total paid. Names are not posted.

## Part 4. Amendment

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4.1 Council must not amend this education instrument by resolution. A resolution that tries is void on the day it is signed. The appeal body must post that fact within 14 days.

4.2 The electoral officer posts the full text at least 30 days before the vote. A vote on shorter notice is void. The officer posts the count within 3 days.

4.3 The change passes if a majority of the votes cast are yes and at least 25 percent of the electors vote. A change that would remove a check named in the constitution passes only if a majority of all electors vote yes. If that count is not met, the change is void.

4.4 The text comes into force the day after the electors adopt it under this Part. It does not repeal a law already in force unless the electors also meet that law's own replacement rule.

4.5 The appeal body reviews the text every 4 years from that day and posts a written report within 60 days. The report does not change the text.